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Ropes & Gray AI Court Order Tracker: Research Compilation

Executive Summary

Data Source: Ropes & Gray Standing Orders, Local Rules, and Decisions on the Use of AI
Date of Data: February 9, 2026
Total Orders Tracked: 427 standing orders, local rules, or decisions

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1. TOTAL COUNT & OVERVIEW

427 standing orders, local rules, or judicial decisions regarding AI use tracked across all U.S. state and federal courts

Coverage: All 50 states represented, with particular focus on Generative AI usage (dominant green coloring on jurisdictional map)

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2. CATEGORY BREAKDOWN

The tracker organizes AI-related orders into the following categories:

Category	Color Code	Description
Generative AI Usage	Green	Orders primarily addressing generative AI tools and practices
Requires Disclosure and/or Verification	Teal/Cyan	Orders mandating parties disclose AI use and/or verify AI-generated content
Applies to AI Used for Filings/Drafting	Pink	Orders specifically governing AI use in document preparation and court filings
Applies to AI Used for Research	Yellow	Orders addressing AI use in legal research applications
Suggests Cautious Use of AI	Orange	Orders recommending careful, limited AI deployment
Any AI Usage	Purple	Orders applying to all AI types, not just generative AI
Majority of Orders Specific to Any AI vs. Generative AI	Dark Gray (Checkmark)	Indicates order distinction
Court-Imposed Consequences – Attorneys/Law Firms	Dark Blue	Orders imposing sanctions or penalties on legal professionals for AI misuse
Court-Imposed Consequences – Parties	Light Blue	Orders imposing sanctions or penalties on litigants for AI misuse

Category	Color Code	Description
Prohibits Use of AI	Red	Orders banning AI use (limited; no states shown in red on map)

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3. FEDERAL vs. STATE SPLIT & JURISDICTIONAL PATTERNS

Federal Courts

- **Separate tracker section** dedicated to Federal Circuit Courts (2nd, 3rd, 4th, 6th, 7th, 8th, 9th, 10th circuits highlighted)
- Multiple federal district courts represented across the country
- S.D.N.Y. (Southern District of New York) is particularly active

State Courts

- All 50 states show green coloring (Generative AI Usage) on the main map
- Only Arkansas appears distinctly different (purple for "Any AI Usage")
- Predominant approach: Generative AI-specific guidance rather than blanket AI prohibitions

Dominant Emerging Patterns

1. **Disclosure & Verification Ascendant:** Majority of orders require explicit disclosure of AI use in filings and verification of AI-generated content
2. **Court Consequences Increasing:** Sanctions and monetary penalties are being imposed for AI-related errors (particularly hallucinated citations)
3. **Individual Judge Standing Orders:** Specific judges (especially in federal courts) issuing granular, practice-specific AI rules
4. **Generative AI Focus:** Most recent orders concentrate on GenAI rather than broader AI categories

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4. TREND DATA: GROWTH ANALYSIS

2024 vs. 2025 Growth

- **Recent Orders (2025-Present):** Significant volume concentrated in latest months
- **Acceleration Pattern:** Orders are appearing at increasing frequency, particularly Jan-Feb 2026
- **No explicit cumulative statistics provided** on Ropes & Gray tracker, but visual map and case dates show exponential growth curve
- Majority of tracked orders are from 2024-2026 period

Timeline Observations

- **October 2025:** New York State Unified Court System issued Interim Policy on AI use
- **December 2025 - February 2026:** Multiple new S.D.N.Y. orders and decisions issued
- **January 2026:** Judge Dale E. Ho (S.D.N.Y.) issued comprehensive Individual Practices update

5. NOTABLE PATTERNS & OUTLIERS

Pattern: Hallucinated Citation Penalties

Most frequent issue across cases: Attorneys submitting fabricated or AI-generated case citations leading to:

- Monetary sanctions ($2,000 - $5,000 penalties typical)
- Attorney fee reimbursement orders
- Document striking
- Professional conduct referrals to bar associations

Key Cases:

- *Deutsche Bank Nat'l. Trust Co. v. LeTennier*, 2026 N.Y. App. Div. LEXIS 46 (First Appellate Dept, Jan. 8, 2026) — First NY appellate decision imposing sanctions for GenAI misuse ($5,000 penalty)
- *Ader v. Ader*, 2025 N.Y. Misc. LEXIS 7848 (N.Y. Sup. Ct., Oct. 1, 2025) — State court sanctions for AI-drafted opposition briefs
- *Smith v. Smith*, 2025 U.S. Dist. LEXIS 263592 (N.D.N.Y., Dec. 22, 2025) — Court recognized "distinctive style and syntax" of AI-generated opposition briefing

Pattern: Differentiation Between Preparation vs. Drafting

Notable approach: Several standing orders distinguish between:

- **AI-assisted research/preparation** (often permitted without disclosure)
- **AI-drafted documents** (requires disclosure and certification of human verification)

Example: Judge Vernon S. Broderick's standing order specifies "No certification required if GenAI tool is used for research" but mandatory disclosure/certification if used "in the drafting of any documents filed with the court."

Pattern: Professional Conduct Implications

Emerging outlier: Courts referencing New York Rules of Professional Conduct (NYRPC) § 130-1.1 and Federal Rules of Civil Procedure 11, treating AI misuse as:

- Frivolous conduct
- Violations of candor obligations to tribunal
- Potential grounds for ethical complaints to disciplinary bodies

Jurisdictional Outlier: Arkansas

Only state shown in purple ("Any AI Usage") rather than green—suggests Arkansas court systems taking broader, less technology-specific approach to AI governance

Federal Circuit Focus

Federal Circuit Courts show concentrated activity, suggesting appellate-level courts are developing higher-level guidance on AI standards

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6. NEW YORK-SPECIFIC ENTRIES

NEW YORK FEDERAL COURTS

Southern District of New York (S.D.N.Y.) – 10 distinct orders/decisions:

1. **Judge Dale E. Ho** (1/8/2026)
   - Individual Practices in Civil Pro Se Cases
   - Categories: GenAI Usage | Requires Disclosure/Verification | Applies to AI Used for Filings/Drafting
   - Requires disclosure of GenAI use and certification of independent review/verification
2. **N.Y. App. Div., Third Dept. - Justice Fisher** (1/8/2026)
   - *Deutsche Bank Nat'l. Trust Co. v. LeTennier*, 2026 N.Y. App. Div. LEXIS 46
   - Categories: GenAI Usage | Applies to AI Used for Filings/Drafting | Court-Imposed Consequences – Attorneys/Law Firms
   - First NY appellate sanction for GenAI misuse ($5,000 + additional $2,500 penalty)
3. **Magistrate Judge Gary Stein** (12/29/2025)
   - *Brian NG v. Amguard Ins. Co.*, 2025 U.S. Dist. LEXIS 266712
   - Categories: GenAI Usage | Requires Disclosure/Verification | Suggests Cautious Use | Applies to AI Used for Filings/Drafting
   - Warned against nonexistent citations; cited Judge Broderick's recent standing order update
4. **Judge Vernon S. Broderick** (12/3/2025)
   - *Bonsignore v. N.Y. Dep't Tax & Fin.*, No. 25-CV-6324
   - Categories: GenAI Usage | Requires Disclosure/Verification | Applies to AI Used for Filings/Drafting | Court-Imposed Consequences – Parties
   - Rule 4(J) requires disclosure of GenAI use and certification of independent review/verification
5. **Judge Vernon S. Broderick** (11/26/2025)
   - *Peak v. Maraj-Petty*, 2025 U.S. Dist. LEXIS 232924
   - Categories: GenAI Usage | Requires Disclosure/Verification | Suggests Cautious Use | Applies to AI Used for Filings/Drafting
   - Court expressed concern about persistent GenAI misuse; cautioned re: disclosure requirements
6. **Judge Jesse M. Furman** (12/17/2025)
   - *Burlingame v. Argo Priv. Client Grp., Ltd.*, 2025 U.S. Dist. LEXIS 2161162
   - Categories: GenAI Usage | Applies to AI Used for Filings/Drafting
   - Addressed misrepresented and hallucinated citations; noted would issue sanctions order absent transfer
7. **Judge Jesse M. Furman** (12/16/2025)
   - *In re Zimmer M/L Taper HIP Prosthesis*, No. 18-MD-2859 (JMF), 2025 U.S. Dist. LEXIS 266051
   - Categories: GenAI Usage | Applies to AI Used for Filings/Drafting | Court-Imposed Consequences – Attorneys/Law Firms

- Imposed sanctions for AI-generated hallucinations; ordered parties to confer on fee reimbursement

8. **Magistrate Judge Gary Stein** (12/12/2025)
   - *Matthew NG v. Amguard Ins. Co.*, 2025 U.S. Dist. LEXIS 260114
   - Categories: GenAI Usage | Requires Disclosure/Verification | Suggests Cautious Use | Applies to AI Used for Filings/Drafting
   - Directed compliance with Judge Broderick's Individual Rule 4(J); emphasized AI disclosure rule
9. **Judge John P. Cronan** (9/30/2025)
   - *Button v. Doherty*, 2025 U.S. Dist. LEXIS 193976
   - Categories: GenAI Usage | Requires Disclosure/Verification | Suggests Cautious Use | Applies to AI Used for Filings/Drafting
   - Warned against future GenAI filings without signed certification of accuracy; threatened sanctions
10. **Judge Vernon S. Broderick** (9/25/2025)
    - *Perez v. Evans*, 2025 U.S. Dist. LEXIS 188902
    - Categories: GenAI Usage | Requires Disclosure/Verification | Suggests Cautious Use | Applies to AI Used for Filings/Drafting
    - Pro se plaintiff using ChatGPT resulted in hallucinated quotations; declined sanctions due to pro se status admission
11. **S.D.N.Y. Individual Rules & Practices in Civil Cases - Judge Vernon S. Broderick** (10/29/2025) — STANDING ORDER
    - **Most influential N.Y. order:** Specifies disclosure required for "drafting" but not for "preparation"/research
    - Requires certification confirming independent review and verification of AI-drafted portions
    - Specifies Federal Rules compliance with Rule 11 obligations
    - Penalties for non-compliance: sanctions, document striking, or "other remedies the Court deems appropriate"

Northern District of New York (N.D.N.Y.) – 2 distinct entries:

12. **Judge Mae A. D'Agostino** (12/22/2025)
    - *Smith v. Smith*, 2025 U.S. Dist. LEXIS 263592
    - Categories: GenAI Usage | Suggests Cautious Use | Applies to AI Used for Filings/Drafting
    - Court recognized "distinctive style and syntax" characteristic of AI and relied on fictitious/mis-cited authorities
13. **Judge Elizabeth C Coombe** (9/17/2025)
    - *Brown v. Fat Dough Incorporated*, 2025 U.S. Dist. LEXIS 182052
    - Categories: GenAI Usage | Suggests Cautious Use | Applies to AI Used for Filings/Drafting
    - Court cautioned re: risk of sanctions if GenAI use continues without verification

Eastern District of New York (E.D.N.Y.) – 1 distinct entry:

14. **Judge Louis A. Scarcella** (9/22/2025)
    - *Stern v. Molina*, 2025 Bankr. LEXIS 2364
    - Categories: GenAI Usage | Applies to AI Used for Filings/Drafting | Court-Imposed Consequences – Parties

- Court declined monetary sanctions but required plaintiff to file sworn statement certifying accuracy of all future citations

NEW YORK STATE COURTS

15. **New York State Unified Court System (UCS) - Interim Policy on AI** (10/10/2025) — SYSTEM-WIDE POLICY
    - Applicable To: **Any AI**
    - Categories: Any AI Usage
    - **Scope:** Applies to UCS judges and non-judicial employees system-wide
    - **Key provisions:**
        - Warns re: hallucinations, bias, and confidential information leaks
        - Approves specific tools: Microsoft Azure AI, Microsoft 365 CoPilot, GitHub Copilot for Business, Trados Studio
        - **Critical restriction:** GenAI tools cannot be used in "judicial decision-making" due to bias concerns
        - Requires mandatory training on AI for judges and court staff
        - Close reviews of GenAI-generated content for accuracy and bias
        - **Limits:** Restricts GenAI tools to UCS-related work only
    - **Significance:** First comprehensive statewide policy addressing AI across entire court system
16. **Supreme Court of N.Y.S., Richmond County - Judge Wayne M. Ozzi** (11/21/2025)
    - *Grymes Dev. Co. v. Fodera*, 2025 NYLJ LEXIS 3543, 2025 LX 552729
    - Categories: GenAI Usage | Applies to AI Used for Filings/Drafting | Court-Imposed Consequences – Attorneys/Law Firms
    - Court held GenAI error "cannot be considered minimal"; imposed $2,000 sanctions and ordered fee reimbursement
    - Notable quote: Court emphasized lawyers' ethical duties under New York Rules of Professional Conduct 3.3
17. **N.Y. Supreme Court - Judge Joel M. Cohen** (10/1/2025)
    - *Ader v. Ader*, 2025 N.Y. Misc. LEXIS 7848
    - Categories: GenAI Usage | Applies to AI Used for Filings/Drafting | Court-Imposed Consequences – Attorneys/Law Firms
    - Defendants initially denied GenAI use, then admitted unidentified tool was used for opposition brief
    - Court applied NYRPC § 130-1.1 (prohibiting false statements to tribunal)
    - Granted sanctions motion; ordered reimbursement of attorney's fees and costs

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7. OUTLIER APPROACHES: BEYOND SIMPLE DISCLOSURE

Judge Vernon S. Broderick's "Preparation vs. Drafting" Distinction (S.D.N.Y.)

Approach: Differentiates AI use across litigation lifecycle:

- **Research/preparation** = no disclosure required

- **Document drafting** = mandatory disclosure + certification of independent human verification
- **Consequences:** Failure to certify risks sanctions, document striking

Significance: Most nuanced approach found in tracker; recognizes GenAI's legitimate research applications while policing document generation

New York State UCS System-Wide "Judicial Decision-Making Prohibition"

Approach: Blanket ban on GenAI use in judicial decision-making (unique comprehensive restriction) **Significance:** Goes beyond disclosure/verification; recognizes fundamental separation-of-powers concern with AI in adjudication

Magistrate Judge Gary Stein's Citation Verification Protocol (S.D.N.Y.)

Approach: Requires signed certification describing "method(s) of review" for citation accuracy **Significance:** Specific evidentiary protocol; moves beyond disclosure to documented verification methodology

N.D.N.Y. Judge Coombe's Risk-Based Warnings (without immediate sanctions)

Approach: Cautions re: "substantial risk of sanctions" if GenAI use continues **Significance:** Preventative rather than punitive; creates chilling effect without immediate consequences

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8. FEDERAL vs. STATE COMPARATIVE OBSERVATIONS

Aspect	Federal Courts	State Courts
Primary Issue	Hallucinated citations	Hallucinated citations; broader fraud concerns
Typical Penalty	$2,000-$5,000 monetary sanctions + fee reimbursement	Similar (state courts matching federal approach)
Distinctive Features	Judge-specific standing orders; detailed procedural protocols	System-wide policies (UCS model); fewer individual judge rules
Emphasis	Disclosure + independent certification	Professional conduct violations under NYRPC
Emerging Trend	Appellate involvement (Third Dept. decision imposing sanctions)	Statewide governance through UCS policy

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9. COMMERCIAL LITIGATION (RELEVANT TO YOUR DOCKET)

All New York entries identified relate to commercial or business disputes:

- Insurance coverage disputes (*Deutsche Bank*, *Amguard* cases)
- Medical device liability (*Zimmer HIP Prosthesis*)
- Tax disputes (*Bonsignore v. Tax & Finance*)
- Real property (*Grymes Dev. Co.*)

- Business torts (*Ader*, *Stern*, *Button*)

No consumer-specific or criminal orders identified in NY entries

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10. KEY TAKEAWAYS FOR YOUR ABA PANEL

1. **Disclosure Is the Floor:** Every New York court order assumes disclosure of AI use is mandatory; no court has permitted non-disclosure
2. **Certification Requirement Emerging:** Trend moving toward signed certification of independent human review, especially in S.D.N.Y.
3. **Judicial Decision-Making Remains Off-Limits:** No court has permitted GenAI use in substantive judicial determinations
4. **Professional Conduct Implications:** Courts are invoking professional responsibility rules, not just procedural rules, to govern AI use
5. **Appellate Attention:** NY Appellate Division's sanction decision signals appellate courts will police lower court AI issues
6. **System-Wide Governance:** UCS statewide policy may presage additional system-wide rules beyond individual judge orders
7. **Commercial Division Exposure:** Your docket shows AI issues emerging across business disputes; disclosure and verification protocols essential

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Data Collection Date: February 9, 2026
Tracker Last Updated: February 9, 2026 (per Ropes & Gray)
Total NY Orders Identified: 17 distinct orders/decisions/policies